

SUPPLEMENTARY BENEFIT UNEMPLOYMENT BENEFIT

This Supplementary Benefit (i.e. Unemployment Benefit) forms part of the Policy. Should any provisions of this Supplementary Benefit be inconsistent with any provisions of the Policy, the former shall prevail for the purpose of this Supplementary Benefit. Definitions used in this Supplementary Benefit where defined in the Policy shall have the same meaning as in the Policy except where specifically provided for in this Supplementary Benefit.

1. DEFINITIONS

“Unemployed” means you do not engage in any work, labour, trade, profession, business or vocation for wages, remuneration or profit. You must not receive any income and you must also be available and actively looking for employment.

“Unemployment” means the state of being Unemployed. Unemployment will not begin until after the end of any period in respect of which you receive payment in lieu of notice.

“Professional” means any work requiring membership in a recognized professional body (e.g. chartered public accountant, actuary, practitioner of Western medicine, solicitor and the like).

“Relative” means spouse, parents, parents in law, brothers, sisters, children, grandparents, uncles, aunts, stepparents, stepchildren, nieces and nephews.

“Self-employed” means a person carrying on a business in the Hong Kong SAR alone or as a partner in a partnership, working for a company or firm in which the person has a financial interest, controlling a company or firm either alone or with others, or working for a company or firm and connected in any way with a person who has control (either alone or with others) over the company or firm.

2. BENEFIT

While this Supplementary Benefit is in force and you are Unemployed for at least thirty (30) days consecutively, the Grace Period of thirty (30) days shown in the General Provisions for the payment of each subsequent premium for the Policy shall extend to three hundred and sixty-five (365) days from the due date of the first unpaid premium following commencement of Unemployment.

Premium will continue to accrue during the Grace Period (as extended) and the provisions under the Non-payment of premium Clause under the General Provisions will apply only after the end of the Grace Period (as extended).

附加保障－失業延繳保障

本附加保障(即失業延繳保障)構成本保單的一部分。如本附加保障的任何條款與保單的任何條款出現分歧，就本附加保障而言，一概以本附加保障的條款為準。本附加保障中使用的定義詞語若已在保單中作出定義，其含意應與保單的定義相同，但本附加保障特別規定者則除外。

1. 定義

「**不被僱用**」指閣下沒有從事任何具薪酬的工作、勞動、貿易、專業、商業或職業及收取其所產生的工資、報酬或利潤。閣下亦必須沒有任何入息並可隨時受聘及正在積極找尋工作。

「**失業**」指處於不被僱用之狀況。失業開始的時間，是指直至閣下收取代通知金這段期間終結之後。

「**專業工作**」指任何需要專業團體會員資格認可的工作(例如特許執業會計師、精算師、西醫、律師及同類職業)。

「**親屬**」指配偶、父母、姻親、兄弟姊妹、子女、祖父母或外祖父母、叔伯舅父、姨姑孀母、繼父母、繼子女、姪子女及外甥子女。

「**自僱人士**」指於香港特別行政區獨自經營業務或在合夥企業擔任合夥人、在閣下擁有財務權益的公司工作、獨自或與他人共同控制一間公司、或為一間公司工作而擁有(不論是獨自或與他人)該公司控制權的人士有任何關連的人士。

2. 利益

於失業延繳保障生效期間，若閣下連續失業30日或以上，保單一般條款所述之寬限期將由30日延長至失業後首個欠付保費日起計365日。

保費將於寬限期內(延長期間)繼續累積，而保單一般條款內之「欠付保費」條款將於寬限期(延長期間)後才適用。

3. EXCLUSIONS

You will not be eligible to claim this Supplementary Benefit under any of the following circumstances:

- (a) If any period of Unemployment does not qualify you for payment of severance benefits under the Employment Ordinance of the Hong Kong SAR;
- (b) If your Unemployment commences within two (2) months following the Policy Date or Issue Date or ownership change date of the Policy, whichever is the latest;
- (c) If you are Self-employed (except Professional);
- (d) If you work for a company or firm in which your Relative has a financial interest;
- (e) Unemployment or prospect of Unemployment that you knew of or should reasonably have known of on or before the Policy Date or Issue Date or ownership change date of the Policy, whichever is the latest;
- (f) Unemployment caused by or resulting from misconduct or any action that contributes to or leads to you being dismissed, or you resign, retire or take voluntary redundancy; or
- (g) Unemployment after the end of a fixed term contract, a contract for a specific task or a period of training or apprenticeship.

4. CLAIMS

- (a) Written notice of a claim must be submitted to us within thirty (30) days of Unemployment and affirmative proof of Unemployment as required must be furnished within ninety (90) days after Unemployment commences.
- (b) If you are a Self-employed Professional, you must provide evidence that:
 - (i) you became Unemployed because you could not find enough work to meet all your reasonable business and living expenses and declared this to the Inland Revenue Department of the Hong Kong SAR;
 - (ii) you have been Self-employed for a continuous period of twenty-four (24) months prior to the date of the claim; and
 - (iii) the Unemployment is not normal or seasonal in your line of work.
- (c) After you make a claim, you must supply and pay for all reasonable information or evidence we ask for to prove your claim. We may, and you hereby irrevocably agree that we have the right to, contact your past employers for information about you.

3. 不保事項

閣下將不會因下列任何情況的失業而獲得賠償：

- (a) 若閣下於失業期間，未能符合香港特別行政區僱傭條例獲取領取遣散費的資格。
- (b) 若閣下於保單日期或簽發日期或保單持有權移交日期(以較後者為準)起計兩個月內失業。
- (c) 若閣下為自僱人士(專業工作除外)。
- (d) 若閣下為閣下親屬所經營的公司工作。
- (e) 若閣下於保單日期或簽發日期或保單持有權移交日期前(以較後者為準)已經知悉或應已合理知悉自己將會失業或可能失業。
- (f) 若閣下因行為不檢，或作出促使或導致閣下被解僱的行為，或閣下辭職、退休或自願遣散而造成或引致的失業。
- (g) 若閣下因合約期限或為某項特定工作而簽署的合約屆滿，或培訓或見習期之終結而導致的失業。

4. 索償

- (a) 閣下須於失業日起計30日內以書面申請賠償，並於失業日起90日內按要求遞交失業證明文件給本公司。
- (b) 若閣下是自僱專業人士，閣下必須提供資料，證明：
 - (i) 導致失業的原因是閣下無法找到足夠工作以應付所有合理的業務及生活開支，並已向香港特別行政區的稅務局作出有關聲明；
 - (ii) 在申請此項賠償之前已經連續二十四(24)個月自僱工作；及
 - (iii) 失業並非閣下工作的一個正常情況或並非季節性的。
- (c) 提出索償後，閣下必須提供本公司要求的所有合理資料或證據以證明閣下的索償，有關費用由閣下支付。在閣下不可撤回地同意下，本公司有權並可能會聯絡閣下的前度僱主，以取得有關閣下的資料。

- (d) If any claim under the Policy arises during the period this Supplementary Benefit is in force and a benefit amount is payable, the premiums due between the first premium due date and the claim approval date shall be deducted from the benefit amount.

5. TERMINATION

This Supplementary Benefit will automatically terminate from the earliest of the following dates:

- (a) if whenever applicable, when this Policy terminates, expires, lapses, becomes void, is cancelled or is surrendered in accordance with the relevant provisions of this Policy;
- (b) on the Policy Anniversary at which the Policyholder's Insurance Age is sixty-five (65);
- (c) on the Benefit Cessation Date of this Supplementary Benefit as specified in Policy Schedule 1; or
- (d) when no more premium is required under the Policy.

6. RIGHTS OF THIRD PARTIES

This Supplementary Benefit forms part of the Policy and no person other than you and us will have any rights to enforce the provisions of this Supplementary Benefit.

- (d) 如於本附加保障生效期間，閣下就本保單提出任何索償而獲賠償，本公司有權從賠償額中扣除於首個保費到期日至賠償獲批核期間之逾期未繳保費。

5. 保障終止

本附加保障於下列情況下(以較早者為準)自動終止：

- (a) 在按照本保單有關條款下(如適用)保單終止、到期、失效、變成無效、取消或退保；
- (b) 保單持有人受保年齡六十五(65)歲的保單週年日時；
- (c) 於保單附表1列明本附加保障的保障終止日；或
- (d) 當此保單已毋須繳付保費。

6. 第三者權益

本附加保障構成本保單的一部分。除閣下及本公司以外，並無其他人士有權強制執行本附加保障的條款。